

Court No. - 40

Case :- WRIT - C No. - 5666 of 2025

Petitioner :- Ritu Verma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Chandra Bir Singh

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.,Gaurav Tripathi

Hon'ble Shekhar B. Saraf,J.

Hon'ble Kshitij Shailendra,J.

1. Heard learned counsel appearing on behalf of the petitioner and the learned counsel appearing on behalf of the respondents.

2. This is a writ petition under Article 226 of the Constitution of India wherein the writ petitioner has prayed for the following substantial reliefs:

"i). issue a writ, order or direction in the nature of certiorari quashing the impugned notice dated 30.08.2024 for amount of Rs. 1,56,960/- for Dakshinanchal Vidyut Vitran Nigam Ltd. and Rs. 11,604/- for Torrent Power Ltd./-issued against the petitioner for service connection Account No. 705080905 issued by the respondent concern. (Annexure No. 2 of the writ petition).

ii). issue a writ order or direction in the nature of mandamus directing the respondents concern not to take any coercive action against the petitioner.

iii). issue a writ order or direction in the nature of mandamus directing the respondents authority to decide the objection dated 07.01.2025 given by the petitioner against the notice for the amount of Rs. 168564/-. (Annexure No. 4 of the writ petition)."

3. Upon perusal of the documents on record and upon hearing counsel appearing on behalf of the parties, the writ petition is disposed of with a direction upon the petitioner to approach the authority concerned under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. If the petitioner files an application within two weeks from date, the authority concerned is directed to consider the said application and decide the same in accordance with law, within a period of six weeks from the date of filing of such application, after giving an opportunity of hearing to the petitioner.

4. We make it clear that the electricity connection of the petitioner shall not be disconnected till such period a decision is taken on the application of the petitioner.

Order Date :- 21.3.2025

Kuldeep

(Kshitij Shailendra, J.) (Shekhar B. Saraf, J.)